

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

NIELSEN & BAINBRIDGE, LLC, *Complainant*

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED; AND OOCL
(EUROPE) LIMITED, *Respondents*.

DOCKET NO. 25-31

Served: February 4, 2026

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

SCHEDULING ORDER

On January 23, 2026, Complainant Nielsen & Bainbridge, LLC (“NBG”) and Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (collectively, OOCL), filed their first joint status report and proposed discovery schedule (“JSR 1”). On January 28, 2026, a partial scheduling order and an order to resubmit a proposed discovery schedule issued, adopting the parties’ proposed schedule through April 6, 2026, but requiring them to resubmit a schedule closing discovery by July 1, 2026. On February 4, 2026, the parties submitted a second Joint Status Report (“JSR 2”)¹ that proposes closing discovery on July 1, 2026, and includes the same caveat as the JSR 1 proposed schedule: that NBG’s former employees may need multiple days for their depositions if conducted in coordination with cases 25-02 and 25-30, and that may necessitate extending discovery. While it seems more efficient and less disruptive to former employees who can provide evidence in all three cases (now, 25-02, 25-30, and 25-31) to be deposed on consecutive days, the parties are encouraged to conduct depositions in whatever manner they determine is most effective in allowing them to abide by the discovery schedule.

Accordingly, the parties are **ORDERED** to follow the schedule below:

February 9, 2026	Parties serve initial requests for production of documents, ESI, and interrogatories
March 11, 2026	Parties serve objections to initial requests for production of documents, ESI, and interrogatories

¹ The parties are requested to label the same types of filing with a numerical indicator, such as “Second Joint Status Report” or “Third Motion to Enlarge.” Initial Order at 4, ¶ 15 (this Initial Order issued on January 17, 2025, in proceeding 25-02, prior to the instant proceeding being severed; this Initial Order continues to apply to this proceeding).

April 6, 2026	Parties submit any unresolved disputes regarding initial requests for production, ESI, and interrogatories
April 20, 2026	Substantial completion of productions of documents and ESI in response to initial RFPs
May 7, 2026	Parties to file Third Joint Status Report
May 21, 2026	Complete depositions of fact witnesses
May 21, 2026	Last day to serve interrogatories, requests for admission, and RFPs
June 4, 2026	Disclosure of initial expert reports, if any
June 19, 2026	Disclosure of rebuttal expert reports, if any
July 1, 2026	Complete expert depositions
July 1, 2026	Close of discovery
July 29, 2026	Complainant's initial brief, proposed findings of fact, appendix
August 26, 2026	Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
September 9, 2026	Complainant's reply and responses to proposed findings of fact

The Secretary is requested to add a copy of the Initial Order in case 25-02 to the docket in this proceeding, 25-31.


 Linda S. Harris Crovella
 Administrative Law Judge